

is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

The disputes presented by the instant motion reflect a failure on the part of counsel for each party to work to honor their client’s discovery obligations. None of the scores of disputes presented were difficult for the Court to resolve. None represented a balancing of competing rights. Rather, it appears to the Court that the parties ignored their respective rights and obligations under the Civil Discovery Act, and engaged in significant overreach. By its Minute Order of July 16, 2026, the Court noted that counsels’ meet and confer efforts appeared to have been perfunctory. The Court specifically noted weaknesses in the positions taken by each of the parties, and ordered the parties to meet and confer further. The parties’ failure to make any significant progress towards resolving the instant dispute, despite the Court’s guidance regarding their respective arguments, is striking.

Based on the foregoing, Plaintiff’s request for an award of monetary sanctions is DENIED.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Angelita Deguzman

23PR000219

SECOND AND FINAL ACCOUNTING AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND ESTATE, FOR ATTORNEY FEES, AND FOR TERMINATION OF CONSERVATORSHIP

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. The Court has been informed that the Conservatee is deceased. The Conservatorship is therefore terminated.

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In the Matter of Lonna Lee Garza Trust

26-52729

PETITION CONCERNING INTERNAL AFFAIRS OF TRUST AND FOR ORDER:
(1) APPROVING TWELFTH AND THIRTEENTH TRUST ACCOUNTS AND REPORTS OF TRUSTEE, AND (2) APPROVING TRUSTEE COMPENSATION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Stacee Cootes v. Vincent Spohn et al

24CV000657

[1] DEFENDANTS’ MOTION TO COMPEL INTERROGATORY RESPONSES AND REQUEST FOR MONETARY SANCTIONS IN AN AMOUNT NO LESS THAN \$960

TENTATIVE RULING: The Motion is GRANTED. Plaintiff is ordered to serve, within 10 calendar days from the Notice of Entry of Order, a verified supplemental response to Special Interrogatory, Set One, No. 12 in accordance with this ruling. Plaintiff’s counsel is ordered to pay to Defendants, care of their attorney of record, sanctions in the amount of \$460, within 10 calendar days from Notice of Entry of Order. Defendants are directed provide Notice of Entry of this Order.

A. PROCEDURAL MATTERS

Defendants Vincent Spohn and Law Offices of Vincent M. Spohn (collectively, “Attorney Spohn”), and Bruce Ketron (with Attorney Spohn, “Defendants”) move, pursuant to Code of Civil Procedure section 2030.300, for an order compelling Plaintiff Stacee Cootes to serve verified supplemental responses to Attorney Spohn’s Special Interrogatories, Set One, No. 12. Defendants further move for an order awarding monetary sanctions in favor of Defendants in the amount of \$960.00 against Plaintiff and/or her counsel, Eric B. Seuthe of Law Offices of Eric Bryan Seuthe & Associates.

By Minute Order dated July 14, 2026, the Motion was continued to allow Defendants to provide sufficient notice of the Motions. On July 14, 2026, Defendants filed an Amended Notice with the continued hearing date and a Proof of Service demonstrating proper service. There is no Opposition on file as of the time the Court has prepared this Tentative Ruling, which is after the statutory deadline to file and serve an opposition to a motion. (§ 1005, subd. (b).)³

B. LEGAL STANDARD

On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems an answer to a particular interrogatory is evasive or incomplete. (§ 2030.300, subd. (a)(1).)

If a timely motion to compel is filed, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but “the burden of justifying any objection and failure to respond remains at all times with the party resisting an

³ Plaintiff filed a late opposition on August 10, 2026, three days before the hearing. An opposition filed after the deadline for a moving party to file a reply is inherently prejudicial to the moving party. Plaintiff’s opposition offers no reason for her failure to comply with the Code of Civil Procedure. The Court has previously cautioned Plaintiff’s counsel that the Court may elect to disregard her nonconforming papers should she continue to fail to comply with procedural laws. (See 12/6/24 Minute Order.) For all of these reasons, the opposition is disregarded. (Rules of Court, rule 3.1300, subdivision (d).)